

An Act

ENROLLED SENATE
BILL NO. 1484

By: Rosino and McIntosh of the
Senate

and

Roe of the House

An Act relating to medicolegal investigations; amending 63 O.S. 2021, Section 1-317d, which relates to sudden unexplained infant death investigations; defining terms; broadening applicability of certain requirements; describing investigations; requiring certain documentation and reporting of specified cases; requiring certain notice to parent or legal guardian; conferring certain right on parent or legal guardian; amending 63 O.S. 2021, Section 938, as amended by Section 3, Chapter 263, O.S.L. 2024 (63 O.S. Supp. 2025, Section 938), which relates to types of deaths to be investigated; requiring investigation of certain deaths; updating statutory reference; providing for recodification; and providing an effective date.

SUBJECT: Medicolegal investigations of infant and child death

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 1-317d, is amended to read as follows:

Section 1-317d. A. As used in this section:

1. "Sudden arrhythmic death syndrome" (SADS) means the sudden and unexpected death due to cardiac arrhythmia, as determined by performance of an investigation, of a young, apparently healthy individual with no previously diagnosed structural heart disease;

2. "Sudden death in the young" (SDY) means the sudden and unexpected death of an individual younger than twenty (20) years of age due to natural causes including, but not limited to, sudden cardiac death or sudden unexpected death in epilepsy (SUDEP), which death remains unexplained after investigation;

3. "Sudden infant death syndrome" (SIDS) means the sudden death of an infant younger than one year of age that remains unexplained after investigation;

4. "Sudden unexpected infant death" (SUID) means the sudden and unexpected death of an infant younger than one (1) year of age, whether explained or unexplained, including, but not limited to, death caused by SIDS, accidental suffocation, or other potential causes; and

5. "Sudden Unexpected Infant Death (SUID) and Sudden Death in the Young (SDY) Case Registry" means the national surveillance system coordinated by the Centers for Disease Control and Prevention and the National Institutes of Health which collects standardized data on sudden and unexpected deaths in individuals younger than twenty (20) years of age.

B. 1. ~~When the death of an infant occurs or child dies suddenly and unexpectedly in this state and the cause of death is considered undetermined,~~ including cases of SIDS, SUID, or SDY, a medical examiner shall conduct ~~a sudden unexplained infant death investigation (SUIDI)~~ an investigation not more than forty-eight (48) hours after the death has occurred. ~~The medical examiner or a medical examiner investigator currently certified by the American Board of Medicolegal Death Investigators shall~~ investigation shall include:

- a. an autopsy if deemed necessary by the medical examiner to determine the cause of death,
- b. microscopic and toxicology studies,
- c. a review of the infant's or child's immunization and medical records, as available through the state's immunization registry, from the infant's or child's

pediatrician or primary care practitioner, or from other sources, and

- d. an interview of the parent, legal guardian or caregiver of, or person who last had contact with, the deceased infant and shall fill out the Centers for Disease Control and Prevention's SUIDI reporting form accordingly or child.

2. The medical examiner shall document in the investigative report any immunizations or emergency countermeasures administered to the infant or child within ninety (90) days before the infant's or child's death, report the case to the SUID and SDY Case Registry in accordance with protocols established by the Board of Medicolegal Investigations and the Centers for Disease Control and Prevention, and forward such report to the State Department of Health.

C. 1. When a sudden death of an individual of any age that is suspected to be caused by SADS occurs, a medical examiner shall conduct an investigation. The investigation shall include:

- a. an autopsy if deemed necessary by the medical examiner to determine the cause of death,
- b. microscopic and toxicology studies, and
- c. a review of the individual's immunization and medical records, as available through state health databases or other sources.

2. The medical examiner shall document in the investigative report any immunizations or emergency countermeasures administered to the individual within ninety (90) days before his or her death, report the case to the SUID and SDY Case Registry if the individual was younger than twenty (20) years of age at the time of death, in accordance with protocols established by the Board of Medicolegal Investigations and the Centers for Disease Control and Prevention, and forward such report to the State Department of Health.

D. The State Department of Health shall retain a copy of each completed SUIDI reporting form in order to compile report for the purpose of compiling accurate and reliable data on ~~SUIDI~~ SIDS, SUID,

~~SDY, and SADS to aid and inform the policies of the Department, and the Department shall provide a copy of each completed SUIDI reporting form to the Child Death Review Board.~~

~~B. As used in this section, "medical examiner" means the Chief Medical Examiner, the Deputy Chief Medical Examiner or a medical examiner appointed by the Chief Medical Examiner pursuant to Section 937 of Title 63 of the Oklahoma Statutes.~~

E. 1. The medical examiner shall notify the parent or legal guardian of a deceased child or infant prior to conducting an investigation as described in this section and shall inform the parent or legal guardian of the right conferred by paragraph 2 of this subsection.

2. The parent or legal guardian of a deceased child or infant may refuse to consent to any investigation or any part of an investigation described in this section of the deceased child or infant, unless the medical examiner suspects that a crime was committed involving the death of the child or infant or the death is otherwise required to be investigated under Section 938 of this title.

SECTION 2. AMENDATORY 63 O.S. 2021, Section 938, as amended by Section 3, Chapter 263, O.S.L. 2024 (63 O.S. Supp. 2025, Section 938), is amended to read as follows:

Section 938. A. All human deaths of the types listed herein shall be investigated as provided by law:

1. Violent deaths, whether apparently homicidal, suicidal, or accidental;

2. Deaths under suspicious, unusual, or unnatural circumstances;

3. Deaths related to disease which might constitute a threat to public health;

4. Deaths unattended by a licensed physician for a fatal or potentially fatal illness;

5. Deaths that are medically unexpected and that occur in the course of a therapeutic procedure;

6. Deaths of any persons detained or occurring in custody of the Department of Corrections or a county jail;

7. Deaths of persons whose bodies are to be cremated, transported out of the state, donated to educational entities, to include limited portions of the body, or otherwise made ultimately unavailable for pathological study; ~~and~~

8. Maternal deaths that occur during pregnancy or within one (1) year of termination of pregnancy reported by a hospital or birthing center under ~~Section 2 of this act~~ Section 1-702f of this title; and

9. Deaths involving sudden infant death syndrome (SIDS), sudden unexpected infant death (SUID), sudden death in the young (SDY), or sudden arrhythmic death syndrome (SADS) as provided by Section 1-317d of this title.

B. The Chief Medical Examiner shall state on the certificate of death of all persons whose death was caused by execution pursuant to a lawful court order that the cause of death was the execution of such order.

SECTION 3. RECODIFICATION 63 O.S. 2021, Section 1-317d, as amended by Section 1 of this act, shall be recodified as Section 941c of Title 63 of the Oklahoma Statutes, unless there is created a duplication in numbering.

SECTION 4. This act shall become effective November 1, 2026.

Passed the Senate the 9th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 29th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____